UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

ASHLE' PENN, individually and as natural mother of A.D., a minor,

Plaintiff,

v.

WASHINGTON COUNTY, OREGON; **STATE OF OREGON**; **OREGON DEPARTMENT OF HUMAN SERVICES**; **KIMBERLY A. BECK**, in her individual capacity; **SCOTT A. JOHNSON**, in his individual capacity; **RICHARD E. MOELLMER**, in his individual capacity; **HEATHER KITTO**, in her individual capacity; **SONYA FAULKNER**, in her individual capacity; **LORI HERNANDEZ**, in her individual capacity; **DAVID MILNE**, in his individual capacity; **NICOLE BENNETT**, in her individual capacity; **ASHLEY L. CRAFTON**, in her individual capacity; **RYLAN DUFFY**, in her individual capacity; **KAYLA MILLER**, in her individual capacity; and **DOES 1–20**,

Defendants.

Case No. [to be assigned]

COMPLAINT FOR DAMAGES AND INJUNCTIVE RELIEF 42 U.S.C. § 1983 — Fourth, First, and Fourteenth Amendments; Monell; Judicial Deception; State Tort Claims

JURY TRIAL DEMANDED

I. INTRODUCTION

1. Nineteen minutes separated an Oregon child-welfare agency from doing right and doing wrong. At 5:40 PM on September 6, 2025, the Oregon Department of Human Services notified Plaintiff by text that A.D. would be released to her custody. At 5:59 PM, the agency reversed course on a single conditional statement attributed to a fourteen-year-old girl in a hospital bed. The statement was unverified. It was untethered to any parental conduct by Plaintiff. It was recanted. It has never been pleaded as a basis for dependency jurisdiction. And it triggered a seizure that has separated Plaintiff from her daughter for nearly a year.

2. Two days later, on September 8, 2025 at 1:44 PM — before the shelter hearing concluded — Plaintiff filed a written special appearance objecting to referee jurisdiction, objecting to continued custody, and demanding placement with the natural mother. The Washington County juvenile clerk received the filing. The clerk refused to docket it. On September 9, 2025, Juvenile Case Processing Clerk Kimberly A. Beck sent Plaintiff an email stating that Plaintiff's "personal appearance was required" and that "paperwork" "does not satisfy court requirements." Beck cited no statute, no rule, and no order. The clerk's office subsequently accepted a second, substantively identical filing from Plaintiff. No procedural distinction exists between the two.

3. Every order that followed rests on that unauthorized rejection. Plaintiff was never served with a summons or petition within the thirty-day window of ORS 419B.812; the first attempt came thirty-six days late. Plaintiff was never afforded the Webex link mandated by Washington County Presiding Judge Order No. 343. When Plaintiff sought the case record under ORS 419A.255, the juvenile court denied access and conditioned inspection on physical courthouse appearance — a condition Plaintiff cannot meet without exposing herself to arrest on an unrelated warrant she is constitutionally contesting. Plaintiff learned the pleaded allegations only because an ODHS supervisor read them aloud on a recorded call. She obtained the record only because A.D.'s attorney sent A.D. a zip drive, which A.D. delivered to her.

4. This action seeks damages, declaratory relief, and injunctive relief against the individual actors who caused these injuries and against the local government whose policy or custom permits clerks to reject conforming filings without cited authority.

II. JURISDICTION AND VENUE

5. This Court has subject-matter jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3)–(4). Plaintiff asserts federal claims under 42 U.S.C. § 1983.
6. This Court has supplemental jurisdiction over Plaintiff's state-law claims under 28 U.S.C. § 1367(a). Plaintiff timely served Notice of Tort Claim on Washington County and the State of Oregon under ORS 30.275 on October 24, 2025 and July 30, 2026.
7. Venue is proper under 28 U.S.C. § 1391(b) because the events giving rise to the claims occurred in this District and each defendant resides or acts within this District.

III. PARTIES

8. Plaintiff **AshLe' Penn** is the natural mother of A.D. (DOB 06/23/2011). She is a citizen of Oregon and resides in Washington County.
9. Defendant **Washington County, Oregon** is a political subdivision of the State of Oregon and operates the Washington County Circuit Court, Juvenile Department, and Washington County Counsel.
10. Defendant **State of Oregon** and defendant **Oregon Department of Human Services (ODHS)** are named for injunctive relief and pendent state-law claims.
11. Defendant **Kimberly A. Beck** is Juvenile Case Processing Clerk and Juvenile Department Lead of the Washington County Circuit Court. She is sued in her individual capacity.
12. Defendant **Scott A. Johnson** is a court clerk of the Washington County Circuit Court. He is sued in his individual capacity.

13. Defendant **Richard E. Moellmer** is Trial Court Administrator of the Washington County Circuit Court. He is sued in his individual capacity for supervisory liability.

14. Defendants **Heather Kitto**, **Sonya Faulkner**, **Lori Hernandez**, **David Milne**, **Nicole Bennett**, and **Ashley L. Crafton** are ODHS employees who acted with respect to A.D.'s case. Each is sued in her or his individual capacity.

15. Defendant **Rylan Duffy** is a Litigation Legal Assistant for the Oregon Department of Justice, Child Advocacy and Protection Division. She signed the October 10, 2025 Declaration of Diligent Efforts. She is sued in her individual capacity.

16. Defendant **Kayla Miller** is an affiant who signed the October 28, 2025 Affidavit Regarding Efforts to Serve Parent. She is sued in her individual capacity.

17. **Does 1–20** are additional actors whose identities Plaintiff will ascertain through discovery.

IV. FACTUAL ALLEGATIONS

A. 2024 — Home Interview and Unfounded Assessment

18. On March 26, 2024, ODHS caseworkers Emily Gonnuscio and Wiengkhone Soumpholphakdy conducted a two-hour interview of A.D. and other children inside Plaintiff's home. Plaintiff was present. She provided her email address at the interview's conclusion.

19. ODHS Supervisor Heather Kitto reviewed the interview and determined the same day: "Out of control not believed to be met at this time so a safety plan will not be implemented."

20. The 2024 assessment closed UNFOUNDED for physical abuse to A.D. by Plaintiff. A.D. recanted and told the assessor she had lied because she was upset with her mother. Law enforcement closed the referral as unfounded.

B. 2024 — DHS Restores Father's Contact

21. In April 2024, A.D.'s father Alquan Davis was arraigned and briefly held in custody. During that period an ODHS worker transported A.D. from grand jury proceedings directly to Plaintiff's home.

22. Later in 2024, ODHS took the position that Alquan "was a safe placement" for A.D. and moved to remove the no-contact order. A.D. returned to father's home.

23. Approximately five months later — on September 6, 2025 — Alquan Davis was arrested at his home for Criminal Mischief in the First Degree and Strangulation of A.D.

C. September 6, 2025 — The Nineteen-Minute Reversal

24. On September 6, 2025, following the assault, A.D. was transported to Legacy Randall Children's Hospital.

25. Hospital records document suicidal ideation with multiple plans, including a plan to stab herself and a plan to strangle herself. A conditional statement was attributed to A.D. — that she would not attempt suicide if returned to her father but would if returned to her mother.

26. At **5:40 PM** on September 6, 2025, defendant Kitto texted Plaintiff: "…we can release custody to you."

27. At **5:59 PM** on September 6, 2025, defendant Kitto reversed: "We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight."

28. In the intervening nineteen minutes, ODHS did not:

    a. conduct a protective capacity assessment of Plaintiff; b. consult a clinical professional regarding the attributed statement; c. determine present or impending danger under OAR 413-015-0425; d. obtain supervisor consultation under OAR 413-015-0415; e. assess Plaintiff's capacity in light of her Certification in Suicide Prevention — Diagnosis and Treatment; f. offer or consider a safety plan under ORS 419B.340; g.

consider Plaintiff's uncles, who were physically present at the hospital and later approved by ODHS as A.D.'s placement; or h. contact Plaintiff to give her opportunity to respond.

29. A.D. recanted the attributed statement to hospital social worker Leah Sathrum and to Plaintiff. Sathrum documented the recantation. ODHS caseworker Bennett documented the recantation. On a recorded call, defendant Faulkner acknowledged the recantation at transcript time 19:18 ("once there was a recantation for that to be considered") and 20:08 ("even given the recantation"). Faulkner further acknowledged: "we didn't actually look at mom's parental capacity" and "we really don't have any instances of her acting dangerously with regard to the safety of this girl."

D. September 8, 2025 — Written Special Appearance Filed and Rejected

30. Plaintiff received no summons, no petition, and no hearing notice for the September 8, 2025 shelter hearing. She received only a "Notice of Protective Custody" pamphlet.

31. Defendant Hernandez told Plaintiff by telephone that ODHS was "not required to physically serve you for a shelter hearing."

32. Plaintiff telephoned the clerk's office on the morning of September 8, 2025. She was told two mutually incompatible things: she could not file anything, and she could only file in person. She informed the clerk she could not appear in person and that no summons or petition had been served. The clerk terminated the call.

33. At 1:44 PM on September 8, 2025, before the shelter hearing concluded, Plaintiff emailed to juvenileweb@washingtoncountyor.gov a written filing captioned *Objection to Referee Jurisdiction, Motion to Participate by Written Filing, Objection to Continued Custody, and Demand for Immediate Placement with Natural Mother*. The filing contained the court name, the cause title, the party names, and was legible. It expressly appeared specially, cited ORS 419A.150, ORS 419B.809, ORS

419B.812, ORS 419B.815, ORS 419B.848(3)(a), ORS 419B.851, and ORS 419B.918, and preserved all jurisdictional objections.

34. At 1:47 PM, Plaintiff transmitted a duplicate to kat_sanchez@washingtoncountyor.gov.

35. During the shelter hearing, court personnel confirmed on the record that Plaintiff had telephonically contacted the court: "Apparently, Mom is called into the court, not to the court hearing, so I'm not quite sure how we can rectify that." A second speaker responded: "She was told of the need to be here in person." No one connected Plaintiff to the proceeding.

36. Pursuant to Washington County Presiding Judge Order No. 343, a Webex session had been generated for the September 8, 2025 hearing. No Webex link was provided to Plaintiff.

37. Attorney Ireland Mahoney of Metropolitan Public Defender Inc. appeared in person purporting to represent Plaintiff. Plaintiff had not authorized the appearance. On September 15, 2025, in a recorded call, Mahoney stated: "That was a mistake because I'm not yet your lawyer… I was not formally appointed to your case."

38. At 3:34 PM on September 8, 2025, Plaintiff emailed defendant Kitto: "I was effectively prevented from participating by the clerk who refused to assist me in receiving this submission for the shelter hearing."

39. On **September 9, 2025 at 3:09 PM**, defendant Beck emailed Plaintiff: "Your personal appearance was required for the shelter hearing on September 8, 2025, and you failed to appear. Attempting to submit paperwork in place of a required in-person appearance does not satisfy court requirements." Beck cited no statute, no rule, and no order. Beck's signature block confined her judicial-adjacent duties to "Adoptions, Guardianships, Emancipations, Back-Up Courtroom Clerk for Judge Goldman."

40. Plaintiff asked Beck to identify the "specific defects in my filing" so she could correct them. Beck identified none.

41. The clerk's office subsequently accepted a second, substantively identical filing from Plaintiff and forwarded it to the tribunal.

E. Service Thirty-Six Days Late

42. The dependency petition was filed September 8, 2025. Under ORS 419B.812, service was required by October 8, 2025.

43. The first service attempt occurred October 14, 2025 — thirty-six days after the statutory deadline. Defendant Milne acknowledged on recorded calls of December 8, 2025 and December 25, 2025 that service had not been accomplished.

44. Defendant Duffy signed the October 10, 2025 *Declaration of Diligent Efforts toward Service*. Defendant Miller signed the October 28, 2025 *Affidavit Regarding Efforts to Serve Parent*. Both submissions describe database and locate searches. Neither discloses to the court: (a) Plaintiff's September 8, 2025 written filing received by the clerk's office; (b) Beck's September 9, 2025 written response acknowledging receipt; (c) Plaintiff's September 8, 2025 email to Supervisor Kitto; (d) Plaintiff's telephonic contact with the court during the shelter hearing; or (e) the text and email channels through which ODHS had communicated with Plaintiff on September 6–8, 2025.

F. Records Access Denied

45. Plaintiff requested the case file under ORS 419A.255 and any other statute permitting access. Judge Rini denied the request and conditioned inspection on physical courthouse appearance. The condition prevented the clerk from performing the ministerial act of providing copies.

46. Physical appearance would expose Plaintiff to arrest in Case No. 24CR49043, an unrelated criminal proceeding she is constitutionally contesting.

47. Plaintiff learned the pleaded allegations only when defendant Faulkner read them aloud on a recorded call.

48. Plaintiff obtained the case record only because the child's attorney provided A.D. a zip drive containing the pleadings, which A.D. delivered to Plaintiff.

G. October 24, 2025 Notice; Continued Proceedings; Second Rejection

49. On October 24, 2025, Plaintiff served a Notice of Special Appearance and initial Notice of Tort Claim under ORS 30.275 on defendants Moellmer, Beck, County Counsel, and Milne. The notice preserved all objections and requested docketing of the September 8 filing *nunc pro tunc*.

50. On October 31, 2025, the juvenile court found the following allegations "proven" against Plaintiff: (A) does not understand the child's specific needs and lacks parenting skills; (B) fails to recognize safety threats from the father; (C) involved in criminal activities. The self-harm statement was not pleaded as a jurisdictional basis.

51. On February 23, 2026, the court entered a Review Judgment.

52. On March 11, 2026, Plaintiff emailed the clerk an Emergency Motion for Telephonic Appearance for a 1:30 PM hearing that day, after learning that morning that the court's hearing notice had been mailed to an incorrect address. At 1:28 PM, defendant Beck responded: "The court cannot accept emailed motions/orders. They must be filed electronically." At 5:03 PM, defendant Johnson emailed: "email is not the correct method to submit documents into a juvenile case."

53. On June 29, 2026, the court entered a Permanency Judgment.

V. CLAIMS FOR RELIEF

COUNT I — 42 U.S.C. § 1983

Fourth and Fourteenth Amendment — Unreasonable Seizure of the Child

(Kitto, Bennett, Faulkner, Hernandez, and Does)

54. Plaintiff incorporates paragraphs 1–53.

55. Officers of the State may seize a child from parental custody without prior judicial authorization only where the information they possess at the time provides "reasonable cause to believe that the child is in imminent danger of serious bodily injury and that the scope of the intrusion is reasonably necessary to avert that specific injury." *Wallis v. Spencer*, 202 F.3d 1126, 1138 (9th Cir. 2000); *Mabe v. San Bernardino County*, 237 F.3d 1101, 1106 (9th Cir. 2001); *Rogers v. County of San Joaquin*, 487 F.3d 1288, 1294 (9th Cir. 2007); *Kirkpatrick v. County of Washoe*, 843 F.3d 784, 789 (9th Cir. 2016) (en banc).

56. At 5:40 PM on September 6, 2025, defendant Kitto's own text established that ODHS had determined no danger from Plaintiff sufficient to withhold custody. Nineteen minutes later, defendants reversed on an unverified, unassessed, subsequently recanted, conditional statement — without protective capacity assessment, without clinical consultation, without supervisor consultation, without a safety plan, and without considering an available family placement.

57. Defendants' conduct violated the Fourth and Fourteenth Amendments.

COUNT II — 42 U.S.C. § 1983

First Amendment — Denial of Access to the Courts

(Beck, Johnson, Moellmer)

58. Plaintiff incorporates paragraphs 1–53.

59. The right to petition government for redress of grievances includes the right of access to courts. *California Motor Transp. Co. v. Trucking Unlimited*, 404 U.S. 508, 510 (1972).

60. ORS 419B.851(5) prescribes the clerk's duty to accept and endorse filings that are legible and bear the court name, the cause title, the party names, and (if any) the attorney's name. Acceptance is ministerial. *See Antoine v. Byers & Anderson, Inc.*, 508 U.S. 429, 436 (1993).

61. Defendant Beck rejected Plaintiff's September 8, 2025 filing without citing any statute, rule, or order, on grounds appearing nowhere in ORS

419B.851. The clerk's office subsequently accepted a substantively identical filing. Defendant Beck rejected a further motion on March 11, 2026 on grounds equally without statutory foundation. Defendant Johnson restated the same non-statutory position. Defendant Moellmer had supervisory notice from October 24, 2025 and did not intervene.

62. Defendants' conduct violated the First and Fourteenth Amendments.

COUNT III — 42 U.S.C. § 1983

Fourteenth Amendment Procedural Due Process

(All Individual Defendants)

63. Plaintiff incorporates paragraphs 1–53.

64. The parent-child relationship is a fundamental liberty interest protected by the Fourteenth Amendment. *Santosky v. Kramer*, 455 U.S. 745, 753 (1982); *Lassiter v. Dep't of Soc. Servs.*, 452 U.S. 18, 27 (1981).

65. Due process requires notice, a meaningful opportunity to be heard, and access to the record on which government acts. *Mathews v. Eldridge*, 424 U.S. 319, 333 (1976).

66. Defendants deprived Plaintiff of notice by failing to serve a summons, by declining to use the communication channels ODHS itself used, and by refusing the Webex link the court had generated. Defendants deprived Plaintiff of a meaningful opportunity to be heard by rejecting her written appearance and refusing her telephonic connection. Defendants deprived Plaintiff of access to the record by conditioning inspection on physical courthouse appearance under threat of arrest.

67. Defendants' conduct violated the Fourteenth Amendment.

COUNT IV — 42 U.S.C. § 1983

Fourteenth Amendment Substantive Due Process — Judicial Deception

(Kitto, Faulkner, Milne, Bennett, Crafton, Duffy, Miller)

68. Plaintiff incorporates paragraphs 1–53.

69. Social workers and their agents who fabricate evidence or omit material facts in dependency filings are not entitled to absolute immunity and are subject to suit under § 1983. *Hardwick v. County of Orange*, 844 F.3d 1112, 1116–17 (9th Cir. 2017); *Costanich v. Dep't of Soc. & Health Servs.*, 627 F.3d 1101, 1112 (9th Cir. 2010).

70. Defendants misrepresented at the September 8, 2025 shelter hearing that Plaintiff had refused a safety plan; no safety plan was offered until October 1, 2025. Defendants Duffy and Miller filed sworn affidavits of diligent efforts that omitted five known channels of contemporaneous contact with Plaintiff. Defendants relied on a self-harm statement that was recanted before the shelter hearing without disclosing the recantation.

71. Defendants' conduct violated the Fourteenth Amendment.

COUNT V — 42 U.S.C. § 1983

Monell — Washington County Custom, Policy, or Practice

(Washington County)

72. Plaintiff incorporates paragraphs 1–53.

73. A local government is liable under § 1983 when a custom, policy, or practice causes a constitutional violation. *Monell v. Dep't of Soc. Servs.*, 436 U.S. 658, 690 (1978).

74. Washington County maintains a custom, policy, or practice — through the Trial Court Administrator's Office and the Juvenile Department — of (a) rejecting parent filings in juvenile dependency proceedings without written statutory basis; (b) requiring physical courthouse appearance as a prerequisite to filing and to records access, without warning parents of the consequences of non-appearance; and (c) failing to provide Webex links generated pursuant to Presiding Judge Order No. 343.

75. Beck's September 9, 2025 and March 11, 2026 rejections, Johnson's March 11, 2026 email, and Judge Rini's records-condition ruling exemplify and confirm the custom. The Trial Court Administrator's Office had notice of the custom from Plaintiff's October 24, 2025 letter and failed to correct it.

76. Washington County's custom caused Plaintiff's injuries.

COUNT VI — State Tort Claims (Supplemental Jurisdiction)

(Washington County; State of Oregon; ODHS)

77. Plaintiff incorporates paragraphs 1–53.

78. Plaintiff timely served written notice under ORS 30.275 on October 24, 2025 and July 30, 2026.

79. Defendants are liable in tort for false imprisonment of the child, intentional and negligent infliction of emotional distress, interference with parental relationship, and malfeasance, misfeasance, and nonfeasance in the performance of statutory duties.

VI. PRAYER FOR RELIEF

Plaintiff prays for judgment against Defendants as follows:

A. Compensatory damages in an amount to be proven at trial; B. Punitive damages against the individual defendants; C. A declaratory judgment that Washington County's custom of rejecting conforming filings without written statutory basis violates the First and Fourteenth Amendments; D. Injunctive relief requiring Washington County to docket, *nunc pro tunc*, Plaintiff's September 8, 2025 filing and to rule on the ORS 419A.150 objection preserved therein; E. Injunctive relief requiring immediate written disclosure of A.D.'s placement location and unconditioned access to the case record; F. Attorneys' fees and costs under 42 U.S.C. § 1988; G. Pre- and post-judgment interest; and H. Such other and further relief as the Court deems just.

VII. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable under Fed. R. Civ. P. 38.

DATED: [Date]

Respectfully submitted,

/s/ [Counsel to be identified] Counsel for Plaintiff

Note on abstention doctrines. This complaint seeks damages against individual state actors and Monell relief against Washington County; the injunctive relief targets the county's filing-rejection custom and the records-access condition, not the substantive outcome of the state dependency proceeding. Federal courts have jurisdiction over § 1983 damages claims arising out of state proceedings, and *Younger v. Harris*, 401 U.S. 37 (1971), does not bar damages actions. *Deakins v. Monaghan*, 484 U.S. 193, 202 (1988). The *Rooker-Feldman* doctrine likewise does not bar suits against non-judicial state actors for constitutional violations independent of the state judgment. *Skinner v. Switzer*, 562 U.S. 521, 532 (2011); *Cooper v. Ramos*, 704 F.3d 772, 777–78 (9th Cir. 2012).